

April 13, 2026 Truckee Civil Law & Motion Tentative Rulings

1. CL0003537 Synchrony Bank vs. Kathlynn Wheeling

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for almost (5) months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the trial date set for July 17, 2026 at 11:00 a.m.

2. CL0003551 Jefferson Capital Systems LLC vs. David Carter

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for over four (4) months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the trial date set for August 21, 2026 at 11:00 a.m.

3. CU0001584 Matthew Coulter vs. Mark Olsen et al

1) Motion to Compel Further Form Interrogatories

Defendant Sierra Foothills Construction Co., Inc.'s ("SFCC") motion to compel further responses to Form Interrogatories, Set One propounded to Plaintiff Coulter and Request for Sanctions is GRANTED. Plaintiff is ordered to serve code-compliant further verified responses to Form Interrogatory ("FI") No. 17.1 no later than ten (10) days from service of notice of entry of this order. The Court awards Defendant sanctions in the amount of \$1,960.00 payable by Plaintiff no later than ten (10) days from service of notice of entry of this order.

Legal Standard

Under Code of Civil Procedure section 2030.300(a), a court may order a party to serve a further response to an interrogatory when the court finds: "(1) An answer to a particular interrogatory is evasive or incomplete[;] (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate[; or] (3) An objection to an interrogatory is without merit or too general."

Upon receipt of a response, the propounding party may move to compel further response if it deems an answer to a particular interrogatory is evasive or incomplete, an exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate, or an objection to an interrogatory is without merit or too general. CCP §2030.300(a). Any motion to compel further answers to interrogatories must be filed within forty-five (45) days of receipt of response, unless the parties agree to extend the time in writing. CCP § 2030.300 (c). When such a motion is filed, the Court must determine whether responses are sufficient under the Code, and the burden is on the responding party to justify any objections made and/or its failure to fully answer the interrogatories. *Coy v. Sup. Ct.* (1962) 58 Cal.2d 210, 220-21; *Fairmont Ins. Co. v. Sup. Ct.* (2000) 22 Cal.4th 245, 255.